



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

November 14, 2013

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Denise McDonald**
Tax Registry No. 898016
Military and Extended Leave Desk
Disciplinary Case No. 2013-8822

The above named member of the service appeared before Deputy Commissioner Martin G. Karopkin on August 26, 2013 and was charged with the following:

DISCIPLINARY CASE NO. 2013-8822

1. Said Police Officer Denise McDonald, while assigned to the 108th Precinct, on or about January 10, 2013, at about 0730 hours, while on duty, wrongfully and without just cause failed to obey the lawful order of her supervisor, 108th Precinct Patrol Supervisor Sergeant Eileen Downing, who directed said Police Officer to assume her post.

P.G. 203-03, Page 1, Paragraph 2

**COMPLIANCE WITH ORDERS
GENERAL REGULATIONS**

2. Said Police Officer Denise McDonald, while assigned to the 108th Precinct, on or about January 10, 2013, at about 0730 hours, while on duty, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that, upon being informed by 108th Precinct Patrol Supervisor Sergeant Eileen Downing that her assignment was not going to be changed, wrongfully removed her duty jacket, assumed an aggressive stance, and threatened to fight Sergeant Downing.

**P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT- PROHIBITED CONDUCT
GENERAL REGULATIONS**

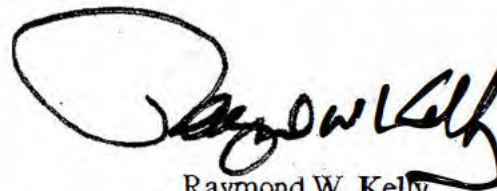
In a Memorandum dated October 31, 2013, Deputy Commissioner Martin G. Karopkin found Police Officer Denise McDonald Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 2013-8822. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

DISCIPLINARY CASE NO. 2013-882 POLICE OFFICER DENISE MCDONALD

Police Officer McDonald's misconduct in this matter warrants her separation from the Department. However, with consideration of her prior service, reason for temperance against an outright dismissal from the Department is presented and I will permit an alternative manner of separation from the Department for Police Officer McDonald at this time.

It is therefore directed that an *immediate* post trial negotiated agreement be implemented with Police Officer McDonald, in which she shall immediately file for Service Retirement and be suspended for thirty (30) days. Police Officer McDonald will retire upon completion of this thirty (30) day suspension period, while on said suspended status. Police Officer McDonald will also be placed on One (1) Year Dismissal Probation, waive all time and leave balances, including terminal leave, if any, and waive all suspension days, with and without pay, if any, served and to be served in this matter.

Such negotiated agreement shall also include Police Officer McDonald's written agreement not to initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Police Officer McDonald does not agree to the terms of this negotiated agreement as noted, this Office is to be notified without delay. This agreement is to be implemented ***IMMEDIATELY.***

A handwritten signature in black ink, appearing to read "Raymond W. Kelly". The signature is fluid and cursive, with a large loop at the beginning.

Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

October 31, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Denise McDonald
Tax Registry No. 898016
Military and Extended Leave Desk
Disciplinary Case No. 2013-8822

The above-named member of the Department appeared before me on August 26, 2013, charged with the following:

1. Said Police Officer Denise McDonald, while assigned to the 108th Precinct, on or about January 10, 2013, at about 0730 hours, while on duty, wrongfully and without just cause failed to obey the lawful order of her supervisor, 108th Precinct Patrol Supervisor Sergeant Eileen Downing, who directed said Police Officer to assume her post.

P.G. 203-03, Page 1, Paragraph 2 COMPLAINT WITH ORDERS
GENERAL REGULATIONS

2. Said Police Officer Denise McDonald, while assigned to the 108th Precinct, on or about January 10, 2013, at about 0730 hours, while on duty, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that, upon being informed by 108th Precinct Patrol Supervisor Sergeant Eileen Downing that her assignment was not going to be changed, wrongfully removed her duty jacket, assumed an aggressive stance, and threatened to fight Sergeant Downing.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT - PROHIBITED
CONDUCT
GENERAL REGULATIONS

The Department was represented by David Green, Esq., Department Advocate's Office, and Respondent was represented by Harvey Levine, Esq.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of both Specification No. 1 and Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Benjamin Lee, Sergeant Eileen Downing, Police Officer Patrick Gallagher, and Sergeant Ye Yuan as witnesses.

Lieutenant Benjamin Lee

Lee has been a member of the Department for over ten years, and has been assigned to the Internal Affairs Bureau (IAB) since March, 2013. Prior to his assignment at IAB, Lee was assigned to the 108 Precinct and knew Respondent because they were both assigned there at the same time.

On January 10, 2013, Lee was working as platoon commander/desk officer. His tour was from 6:50 a.m. to 3:35 p.m., and he arrived at the desk approximately a little after 7:00 a.m. Around this time, Sergeant Downing, assigned as the patrol supervisor, was getting the tour "out the door" by adjusting the roll call and assigning equipment. She was also behind the desk, behind Lee to his left. Lee testified that at approximately 7:30 a.m., Respondent approached him at the desk. The noise level at the desk at this

time was moderate, and because a tour change was occurring, Respondent was not the only person standing in front of the desk.

That morning, Respondent approached Lee to ask about changing her assignment from quality of life auto to summons auto. Lee explained to Respondent that there were already two summons autos from Traffic Safety, and that he could not justify sending out a third. He informed Respondent that she was going to remain as the quality of life auto. Lee stated that during their conversation, Respondent spoke in a conversational tone, but he could tell that "she was a little annoyed." Lee then testified that Respondent explained her assignment as being a lot of work for one woman to handle. He tried to explain to Respondent that both assignments were very similar because she could write summonses and take "whatever enforcement action" she had during down time and that this assignment "[was] not that bad." During this time, Lee did not know whether there were sufficient vehicles available for Respondent to actually perform her assignment.

While Lee and Respondent were speaking, Sergeant Downing was located slightly to Lee's rear, most likely standing. She told Respondent in a stern, slightly elevated voice "to take her assignment, to go out on patrol." Lee stated that Downing's voice was elevated in response to him having already explained to Respondent twice why her assignment would not be changed. He testified that Downing was Respondent's supervisor and she was responsible for issuing Respondent's assignment. Lee then explained that by going to speak to him, Respondent was breaking the chain of command. He further explained that, while he does make himself available to anybody that has an issue, Respondent had approached him at an inconvenient time. It was the beginning of a tour, he had a number of entries to make, and he asked Respondent to give him time.

When Downing told Respondent the first time to take her post, Respondent “snapped at [her] stating, ‘I’m talking to the lieutenant.’” Downing was not screaming but her voice was slightly elevated and firm, while Respondent’s tone was slightly louder than Downing’s. Lee stated that after this, Downing made a comment out loud saying, “If this isn’t insubordination, I don’t know what is.” Lee then testified that out of the corner of his eye, he observed Respondent unzip her jacket, flip the jacket onto the railing that separates the public from the Department, stretch her neck, roll her shoulders in a manner indicative of wanting to fight, while staring at Downing. Respondent then stated, “Let’s go.” Lee was shocked by Respondent’s actions.

Approximately five to ten seconds after Respondent stated “Let’s go,” Lee ordered her out of the building by stating, “Denise, outside now.” Upon exiting the building, Respondent stated that she was tired of Downing “either talking to [her] or screaming at [her] like a dog.” Lee then inquired into what was going through Respondent’s mind when she unzipped her jacket and challenged a supervisor to a fist fight. Respondent’s response to Lee was that “she was hot.” Respondent further explained that she wanted to be summons auto and not quality of life auto because she likes to write summonses. Lee mentioned to Respondent that two weeks prior fliers had been posted in the precinct for summons auto positions, but Respondent answered “she was not interested in that.”

After less than five minutes of speaking outside, both Lee and Respondent returned inside, where Lee then spoke to Downing. Lee and Downing discussed what had just transpired and they determined it was a matter the Commanding Officer (CO) should be aware of. Because the CO was on vacation at the time, they notified the

Executive Officer (XO), Captain Bogle. Shortly thereafter, Bogle arrived at the precinct. At that time, Lee realized there were no cars available for Respondent to go on patrol so she was asked to stand by.

During cross examination, Lee confirmed what the 108 Precinct would look like at 7:30 a.m., including the switching of shifts and people milling about in the area. Lee agreed that after walking up the steps to the 108 Precinct, there is an entranceway with the desk on the right. There is a security gate approximately three feet high which separates the public from behind the desk. In fulfilling his duties as the desk officer for a new tour, Lee must take care of paperwork up front. When Respondent approached Lee as he was fulfilling his duties, he was able to multitask by listening to Respondent while also taking care of the work he needed to complete.

During his conversation with Respondent, Lee informed her that he was busy and asked her to give him some time and return later. Lee confirmed that during this exchange, the tone remained conversational. At some point thereafter, Downing told Respondent that “[she had] her assignment,” which was quality of life auto. He then explained the typical procedure for changing an assignment. He stated that, although a member of the service (MOS) would typically approach their supervisor, he has always made himself open to anybody that had any questions or concerns. “Breaking the chain of command” is not something that would incur a disciplinary charge, nor is it something that would bother him. Lee confirmed that Downing, as the roll call officer, typically knows whether or not a radio motor patrol car (RMP) is available to accommodate an assignment.

Within a minute after the conversation between Respondent and Downing, Respondent removed her jacket. When Lee and Respondent spoke outside of the building, Respondent told Lee that the reason she removed her jacket was because she was "hot," and Lee believed Respondent was referring to her body temperature. Lee then stated that after Respondent took off her jacket, he heard her say "Let's go." He repeatedly confirmed that Respondent stated "Let's go," and that she did not mean it in a manner such as "Let's go somewhere." During this exchange between Respondent and Downing, Lee remained seated, approximately five feet from Respondent. If Respondent had wanted to go behind the desk towards Downing she would have to walk past Lee, up one step, and through an open gate. After hearing Respondent say "Let's go," Lee decided to take Respondent outside.

Lee then explained that although there were grounds for discretionary suspension, it was not up to him to exercise that discretion, nor did he have the authority to suspend Respondent. Lee confirmed that by taking Respondent outside, he sought to diffuse the situation, and when they returned inside, he intended to send Respondent on her assignment. When Lee asked Downing about an RMP for Respondent to take, she informed him that there was in fact no car available. Upon hearing this, Lee told Respondent to "stand by."

Sergeant Eileen Downing

Downing has been a member of the Department for approximately eight and a half years. She has been assigned to the 108 Precinct, for a little over two and a half years. Downing knew Respondent because she was Respondent's immediate supervisor

at the 108 Precinct. On January 10, 2013, Downing was assigned the second platoon patrol supervisor from 6:55 a.m. to 3:52 p.m. As patrol supervisor, it was Downing's duty to look over roll call, make adjustments as needed, conduct roll call, and turn members out.

Downing conducted roll call on the morning of January 10, 2013 in the 108 Precinct muster room. Downing confirmed that Respondent was present during roll call, and she was assigned to the quality of life auto. The duties of quality of life auto, as described by Downing, include addressing precinct conditions, quality of life conditions, and traffic conditions. This assignment can be handled by one person, but may be assigned to more than one person, either in a single car or separate cars. On this morning, Police Officer Patrick Gallagher was also assigned quality of life auto, so during roll call Respondent requested her own RMP. Downing denied Respondent a separate car, informing her that there were not enough cars to go around. Respondent replied to this information by saying "okay."

After roll call, Downing went to the desk area and began to break down the roll call. Doing this requires making any adjustments to assignments, making sure everyone is in attendance and has been given their assignment, and then making the desk copy and the Telephone Switchboard (TS) a copy of the assignments for the day. Downing stated that the TS operator who was assigned on the roll call did not come in that day because he was not actually scheduled to work. In order to replace him, Downing assigned Gallagher to the TS. Downing stated that she believed this information was passed on to Respondent at the desk.

Downing then described her physical location and positioning within the precinct. She was situated near the desk, both standing and sitting while doing the breakdown. Her body was facing outwards, the same direction as the desk officer, Lee. While doing the breakdown of roll call a few feet behind Lee, Downing saw him conducting his desk entries and also speaking with Respondent. Downing also described the changing of tours occurring in the precinct at this time. She stated that, although it was noisy in the precinct, it was not unusually noisy and she was able to hear Respondent say in a conversational tone, "I don't understand why she always puts me in quality of life." Downing then heard Lee tell Respondent that she was to go out as assigned. At that point, Downing believed there were just enough cars for each person who needed one to complete their assignment.

Downing stated that Respondent then asked Lee if she could be assigned to the summons auto because she was by herself. Lee responded "no, because we already have summons officers out there, just go out as quality of life." Respondent replied by stating that it was too much work for one female officer, but Lee answered her by telling her she was going out with that assignment. At that point, Downing was observing Lee trying to complete his desk entries while Respondent was still talking to him. Downing told Respondent to go out as assigned in a slightly louder, authoritative tone. Respondent replied by raising her voice and informing Downing that "[she] was talking to the lieutenant." Downing's response was to ask Respondent if she was refusing to take her assignment, to which Respondent yelled back that she did not say she was not taking her assignment, but that she was talking with the lieutenant. Downing stated, "Well, if that's not insubordination, I don't know what is."

Downing then testified that Respondent proceeded to “rip off her jacket, [throw] it on like the gate area that was attached to the desk, and then she rolled her shoulders back and her neck, and she put up her hands, and said ‘Let’s go.’” Downing testified that she interpreted Respondent’s actions and words to mean that Respondent wanted to fight her. Downing stated that she was amazed at Respondent’s reaction. At this point, Lee told Respondent to step outside. After returning inside, Downing and Lee spoke about the incident in the muster room. Downing notified Lee that she wanted Respondent suspended, but Lee informed her that they needed a captain’s approval. At that point, Downing called Bogle.

Downing was then asked whether or not she knew if there were enough cars for Respondent to go out as the quality life auto. She affirmed that she knew that prior to roll call there would not be enough vehicles for Respondent and Gallagher to go out separately, but once Gallagher was reassigned to the TS, there was still an RMP available for Respondent to perform her assignment.

During cross-examination, Downing specified that during day tours at 7:30 a.m. there could be a range of 20 to 40 officers coming in and out or walking in front of the desk. Downing confirmed that Respondent was not disrespectful to her during roll call, but Respondent had asked for a separate car for her assignment. She also acknowledged that it is not unusual for an officer to be unhappy with their assignment. Downing then explained the protocol for an officer wishing to change their assignment. She agreed that, while there is nothing wrong with going to the next rank of command, a person is usually supposed to go through the ranks. Downing stated, “If anybody wants to change their assignment, [they] should go to [their] direct supervisor.”

Downing then explained that due to the type of work at the desk, she may have been seated at some points, but for the majority of the time she was standing up. When asked why she raised her voice when telling Respondent to take her assignment when Respondent was speaking with Lee, Downing replied, "The lieutenant was trying to do his entries." There were a number of entries that Lee needed to complete at the beginning of the tour.

Downing explained the process for getting vehicles to officers. She knew at the time she assigned Respondent to the quality of life auto that the assignment required a vehicle, but she was unsure if a car was available for Respondent at the time of roll call. She confirmed that some vehicles that are out from the previous tour could remain out for overtime, but when an RMP is at the precinct, the keys are located at the desk until the set of keys are handed out.

Police Officer Patrick Gallagher

Gallagher has been a member of the Department for just over three years, and has served at the 108 precinct for approximately one year and three months. Gallagher knew Respondent from working together. They had both worked the midnight tour, but Gallagher was eventually transferred to the day tour.

Gallagher confirmed that he was working at the precinct on January 10, 2013. He was assigned to the 7:05 a.m. to 3:40 p.m. tour, and his initial assignment given at roll call was the quality of life auto. Gallagher explained that "quality of life auto is typically responsible for picking up the majority of car accidents that happen within the precinct and any 311 assignments." While Gallagher did not recall ever working the quality of

life auto assignment alone, he agreed that it was not too much for one person to handle alone and that the precinct now has an officer who works it alone five days a week.

Although Gallagher's initial assignment given at roll call was the quality of life auto with Respondent, his assignment was changed to the TS operator. The TS is located to the left and approximately five feet from the desk. Gallagher arrived at the TS at about 7:53 a.m. He testified that there was a large number of people in front of the TS-desk at that time, stating that the midnight units were coming in from their tour, while the day tour were being assigned patrol sectors on their way out. Gallagher stated, "so there was a lot of chaos." He was unsure whether any arrests were being processed or if the telephone at the TS was ringing at the point.

Although Lee was assigned to the desk that day and Downing was not, Gallagher observed her behind the desk. He also observed Respondent and Lee having a conversation and overheard Respondent stating, "quality of life auto was too much for one officer to handle." He was unsure of Lee's response. Gallagher then explained that the TS desk was high so a person does not have a direct view as they would if standing.

Gallagher testified that Downing had overheard the conversation between Respondent and Lee, at which point Downing intervened stating approximately two times to Respondent in an authoritative tone, "You have your assignment, you have your assignment for the day, go forth with that assignment." Respondent did not go forth with her assignment. Gallagher stated that Respondent replied back loudly to Downing that she was having a conversation with Lee. After some back and forth between Respondent and Downing, Gallagher stated that Respondent threw her jacket down on the floor "I guess." However, Gallagher acknowledged that his view of where the jacket would have

landed was not clear nor did he see her do anything when she took off her jacket.

Gallagher did hear Respondent say "Let's go," which he interpreted to be "combative; almost challenging" towards Downing. Gallagher did not recall anyone telling Respondent to leave the precinct, but he did observe her walk outside.

On cross examination Gallagher confirmed that he had a Patrolmen's Benevolent Association Union delegate present during his official department interview on January 10, 2013 with him. He also confirmed a statement he made during that interview where he stated that, although he heard Respondent make a statement [when she took off her jacket] he was unsure of exactly what Respondent had said. When asked about his memory improving since that interview, Gallagher explained that his memory of the events had improved once everything had calmed down. He reaffirmed that due to his shock of what had transpired and the fact that he had never been a part of a Department investigation, his recollection actually improved over the following days. Gallagher acknowledged that he did not notify anyone that he had remembered what Respondent had said. He then affirmed that he had not been informed by the Department Advocate or anyone else that there was a claim that Respondent had said "Let's go."

During cross-examination, Gallagher explained what his body positioning was in regards to Respondent, Lee, and Downing. At the time of the incident, he was in a swivel chair catty-cornered away from Lee. Gallagher was the only person in the precinct answering the TS, which required him to transfer calls to their correct location. In getting from the muster room where roll call took place to the TS, Gallagher took time to stop and speak to other officers, although he could not recall exactly who. In order to get from the muster room to the TS, a person would make a right out of the doorway and the

desk is approximately 40 to 50 feet from there. At approximately 7:40 a.m., when walking from the muster room to the TS, Gallagher did not pass by Respondent, but he did go look for her in order to inform her that his assignment had been changed. Gallagher found her standing near the exit door to the precinct and told her of the change. Respondent replied by informing Gallagher that he did not need to tell her his assignment had been changed. Gallagher walked away in order to complete his TS assignment, and a short while later Respondent approached Lee at the desk.

Gallagher did not recall seeing Downing behind the desk until she became engaged in the conversation between Respondent and Lee. Although Gallagher remained seated during the entire conversation between Respondent, Lee, and Downing, his attention was on the conversation and he had swiveled his chair towards the desk. When seated at the TS, Gallagher could see persons standing from their shoulders up, but he was not able to hear every word out of Respondent's mouth. Gallagher did not directly recall hearing Respondent say "You want me to go?" However, he did recall hearing Respondent say "Let's go."

Sergeant Ye Yuan

Yuan has been a member of the Department for approximately seven years. He has been assigned to the 112 Precinct for approximately four to five months, and prior to this, he was assigned to the 108 Precinct for approximately four to five months. Yuan knew Respondent from working with her at the 108 Precinct. On January 9, 2013, he was assigned patrol supervisor of the midnight tour from 11:05 p.m. to 8:02 a.m. On January 10, 2013, after returning from his tour, Yuan was standing on the staircase

approximately 20 to 30 feet from the desk when his attention was drawn to Respondent. He heard Respondent say "I'm talking to the lieutenant" in a high pitched voice.

Yuan testified that he heard some sort of altercation between Respondent and Downing. He heard Downing respond to Respondent by asking her if she was refusing her assignment. He then heard Respondent tell Downing to stop speaking to her like a dog. At this point, Downing's voice was "pretty high," and Respondent's tone of voice was "angry." Yuan then observed Respondent take her jacket off and throw it across the room. The jacket landed near a gate. Yuan then saw Respondent put her hands up and wide in what looked like to him an aggressive manner. He also heard her say the words "Let's go," in what he perceived to be a threatening manner. Lee then ordered Respondent to exit the building. At that point, Yuan walked up to the desk and asked Downing if she needed him to stay behind and to see if she needed him as a witness. Yuan remained at the desk when Lee returned inside.

On cross-examination, Yuan was asked if the way in which Respondent put her arms up resembled someone asking "why me, what did I do?" He responded that the gesture was pretty clearly made as if trying to fight Downing. At that point, Yuan was still standing on the stairs about two to three steps up from the ground and about twenty to thirty feet from Downing. Although there were other people around Yuan, he stopped walking up the stairs, turned his body around, and focused his attention when he heard Respondent's voice. Yuan agreed that he did not see Respondent take a boxing stance.

Respondent's Case

Respondent testified in her own behalf.

Respondent

Respondent has been a member of the Department for almost twenty-three years. She was assigned to the 108 Precinct for approximately eight to nine years. On January 10, 2013, she was assigned to work the 7:05 a.m. to 3:40 p.m. tour. At roll call that day, Downing was giving out assignments. Respondent agreed that Downing was a person that she had experienced problems with before, stating that Downing had "screamed at [her] in the past," approximately two to three months prior. Respondent testified that in the previous incident, the TS had given her an assignment for a traffic condition, but Respondent told the TS to reassign that assignment because her meal period was coming up and after that she needed to go to traffic court. When Respondent finished the job she was on and went to take her assigned meal, Downing "started screaming, 'see the desk, see the desk.'" When Respondent approached the desk, Downing asked why Respondent did not respond to the job, to which Respondent explained the conversation between herself and the TS. Downing replied by telling Respondent to go back out with her partner and finish the job, and then take meal. The entire conversation took place in front of Respondent's partner and Sergeant Porter.

Respondent agreed that on January 10, 2013, she was assigned to the quality of life auto at roll call. Respondent did not interrupt Downing during roll call. She felt that she was better at writing summonses so when roll call ended, she went to the desk to speak to Lee in order to try and change her assignment. Lee responded to Respondent's request by informing her there were already two summons autos assigned. Respondent then informed Lee that she believed quality of life auto consisted of a lot of work,

especially when one looks at the number of accidents in the 108 Precinct. At no point did Respondent use gender. She did ask if there were any other females in the precinct who could help her, but Lee did not get an opportunity to respond.

Respondent then explained her physical positioning as well as Downing and Lee's positioning within the precinct during the incident. Respondent stated that Downing was behind Lee, facing the holding cell, and was the only person seated at the TS. At that time, Respondent was facing Lee while he sat at the desk. She then testified that Gallagher was not sitting in the TS chair, even though he had already signed in. Furthermore, Respondent did not see Gallagher anywhere at that time.

Respondent stated that she was "having a conversation with Lieutenant Lee, and [Downing] was in earshot of this conversation, and she jumped out of the chair and she deliberately provoked the situation by intervening into this conversation aggressively and unprofessionally." Respondent explained that Downing "released all her anger and rage down on [her]" with "sprinkles of spit" hitting her face and jacket. In response to Downing screaming, Respondent told her that she was not a dog, and then continued her conversation with Lee. Downing moved forward, continuing to scream and said repeatedly, "[A]re you refusing this assignment." Respondent asked Lee if she was refusing the assignment. Lee said, "No," but Downing continued to scream. Lee then told Respondent to stand by.

At this point, Respondent stepped away from the desk and removed her jacket "because [she] was embarrassed, humiliated and belittled, and also [she] wanted to remain cool and relaxed." Her jacket then fell on the floor. Respondent then testified that she asked Downing, "Are you letting me go, do you want me to go?" Respondent

stated that in saying those phrases, she was asking Downing if she wanted Respondent to leave. After saying this, Lee asked Respondent to step outside, which she did. She then had a conversation with Lee, where Lee inquired as to why she removed her jacket. Respondent responded by saying she is a "plus-size woman" and was hot. Respondent told Lee that she was waiting for him to intervene after Downing started screaming at her but he never did. Respondent testified that she never threatened Downing. They then returned back inside, at which point, Lee and Downing left the desk and went into the muster room to speak. Lee then informed Respondent that he did not have a car for her to take out.

When asked if she had seen Yuan that day, Respondent replied that she had seen him speaking to Downing as he was leaving the precinct in his civilian clothing. Respondent overheard Downing and Yuan discussing her jacket, at which point Yuan stated that he did not see anything because he was upstairs on the third floor in the locker room. Downing and Yuan were standing approximately one foot from Respondent during this discussion.

On cross-examination, Respondent agreed that she did not wish to be quality of life auto that day because she was better at writing summonses. While Respondent did not believe she should be able to choose her assignments, she did ask if she could switch assignments that day. After Lee informed Respondent that there were already two summons autos out that day, he inquired if she was looking to put in for the summons auto position that was available. Respondent then denied that Lee told her he would need to speak to her later because he was busy. Respondent stated that Lee never told her to

take her post. She said that Downing intervened aggressively and unprofessionally in the conversation she was having with Lee.

Respondent agreed that she did not see Gallagher sitting in the TS chair. She confirmed that she had worked together with Gallagher on previous assignments and they have gotten along in the past. However, after hearing his testimony, Respondent believes that Gallagher would, and did lie. Respondent and Yuan on the other hand had little contact, but Respondent believes that Yuan would lie. Respondent then stated that she and Lee had little contact, because he was new to day tours and that he too would lie because he would take a "supervisor's side over a police officer's side." Lastly, Respondent believes that Downing would lie as well.

In explaining how her jacket ended up on the floor, Respondent said that she lifted her hands to about face level and the jacket fell out of them. She agreed that approximately a minute after Downing began screaming, Lee remained at his desk but asked Respondent to step outside "in a nice way." Respondent heard Downing yell "Are you are refusing the assignment?" She did not hear Downing tell her to take her post. Respondent agreed that she did raise her own voice, but only when telling Downing that "[she was] not a dog." Respondent stepped approximately 15 feet away from the desk, waiting to find out what Lee wanted her to do next since he had told her to stand by.

When asked why she did not ask Downing for a new assignment during roll call, Respondent testified that she did not think about asking her, but went directly to speak to Lee. Furthermore, it was not odd for people to go directly to Lee when inquiring about a change of assignment. Finally, Respondent denied ever threatening Downing to a fight, stating it is not in her character to do so.

FINDINGS AND ANALYSIS

Certain facts regarding the incident with Respondent are not in dispute, but the details of the incident and the context in which it happened are in dispute. There is no question that at the time of the incident, Respondent was by the desk of the 108 Precinct after roll call speaking with Lee about her assignment. There is no question that Downing, who was also behind the desk, intervened in the discussion. There is no question that Respondent took off her jacket, and there is no question that Lee ordered Respondent to step out of the stationhouse where he met with her and spoke to her. There is no question that upon re-entering the stationhouse, Lee intended to send Respondent out on her assignment. There is no question that Downing wanted to suspend Respondent.

What is in dispute is what was said and done during the incident. There are two basic versions of this incident, the Department version, presented by Lee, Downing, Gallagher and Yuan, with some minor variation, and Respondent's version, to which only she testified.

It is not prudent to decide facts solely based on the circumstance that there are more witnesses for one side than the other. The credibility of a witness is significant when deciding the facts of a case. Here, after listening to the testimony of the witnesses, I found Lee to be the most credible of the witnesses who testified. The two adversaries in the incident were Respondent and Downing. Certainly, Respondent had a vested interest in the outcome of the trial and was partial when she testified. Downing, however, was also an interested witness in the outcome of the trial, although she offered a generally credible testimony. Gallagher had prior inconsistent statements as to his personal

knowledge of the incident. Yuan's testimony was limited as to what he observed of the incident. Based on the foregoing, I find the facts to be as follows.

On January 10, 2013, Respondent was assigned the 7:05 a.m. to 3:40 p.m. tour at the 108 Precinct. Respondent was present at roll call, which was conducted by Downing, Respondent's immediate supervisor and the Patrol Supervisor on this date. Downing assigned Respondent the quality of life auto with Gallagher as her partner. The quality of life auto required a vehicle. Downing had assigned a vehicle to Respondent at roll call, but she did not know whether a vehicle was physically available for Respondent to use. Downing and Respondent both testified that Respondent was not disrespectful at roll call. Downing testified that it was not unusual for an officer to be unhappy with an assignment.

After roll call, Downing testified that she went to the desk area to break down the roll call, which required making any necessary adjustments to the assignments. While doing so, Downing discovered that the MOS assigned as TS operator was not scheduled to work on this date, so Downing assigned Gallagher as TS operator. At the 108 Precinct, the TS Operator was seated to the left and about five feet away from the desk officer.

At about 7:30 a.m., Lee, as the desk officer at the 108 Precinct, was seated at the desk when Respondent approached him about an assignment change from quality of life auto to summons auto. At the time that Respondent approached Lee, a tour change was in progress. The noise level was moderate and Respondent was not the only person standing in front of the desk.

Although by requesting a change in her assignment from Lee rather than Downing, Respondent broke the chain of command, Lee did not have an issue with it. He testified that he made himself available so that if an MOS had “an issue that they want to approach me, I am more than open to address it.”

When requesting the assignment change, Respondent spoke with Lee in a conversational and respectful tone. Lee explained to Respondent that because there were two summons autos already assigned, he could not justify assigning a third one so he informed Respondent that she was going to remain assigned to the quality of life auto. A little annoyed, Respondent asked Lee again for a change, explaining that quality of life auto was “a lot of work.” An issue at trial was whether Respondent said quality of life auto was “a lot of work for one woman to handle,” which was the testimony of Lee and Downing, or that it was “a lot of work,” as Respondent testified. Regardless of whether Respondent used the term “woman,” it is undisputed that Respondent did not want the assignment, in that it consisted of a lot of work for one person and that she wanted the summons auto, because she believed she was better at writing summons. Upon hearing Respondent’s second request for a change in assignment because it was “a lot of work,” Lee testified that he told her that quality of life auto was similar to summons auto and that “it’s not that bad.”

After denying Respondent a second time, Lee testified that he heard Downing in a stern and firm voice that was a “little bit elevated,” tell Respondent “to take her assignment, to go out on patrol.” Issues at trial were whether Downing screamed at Respondent, what Downing said to Respondent, and where Downing was located when she issued the order.

Downing testified that because she saw Lee “trying to do his desk entries, and [Respondent] was still talking to him,” she spoke in a stern, elevated, louder and “just more authoritative” voice and told Respondent to “go out as assigned.” On the other hand, Respondent testified that Downing “unprovoked screamed out, Stop talking to the lieutenant.’ And when I say scream, she screamed.” Respondent also testified that Downing “released all her anger and her rage down on me. Her face was real red and she was like she seemed to be foaming, like spitting.” It is clear from the testimonies that Downing intervened in Respondent’s discussion with Lee and she spoke, at the very least, in a stern, loud and authoritative voice. I credit Lee’s and Downing’s testimonies that Downing issued an order to Respondent to go out on her assignment.

With respect to where Downing was located when she issued the order, Lee testified that Downing was next to him, “slightly to [his] rear,” and most likely standing. Downing testified that she was about five feet behind Lee at the time, facing outwards in the same direction as Lee, and standing and sitting while doing the breakdown. Gallagher testified that the incident happened after he signed in as TS operator at 7:53 a.m., and that at the time of the incident, he saw Downing behind the desk when she issued the order. On the other hand, Respondent testified that Downing was “sitting at the TS,” and “manning the TS,” “the only one sitting at TS,” facing in the direction of the holding cell and sitting behind Lee. Respondent testified that she did not see Gallagher at all during the incident and that Gallagher was not seated at the TS. Regardless of the exact location of Downing, the testimonies, including Respondent’s, placed Downing behind the desk and behind Lee.

After Downing issued the order, Lee testified that Respondent, in a very agitated and angry tone that was "slightly louder" than Downing's, said to Downing that she was "talking to the lieutenant [Lee]." Downing confirmed Lee's testimony that Respondent "raised her voice at me, and she said 'I'm talking to the lieutenant.'" Downing testified that Respondent was screaming at her at the time. Yuan testified that he was ending his midnight tour and walking up the stairs to the locker room to change when he heard "a loud voice, I believe it was from [Respondent], saying I'm talking to the lieutenant." On the other hand, Respondent testified that "because [Downing] kept screaming, basically I said to her that I'm not a dog." I credit Lee's, Downing's and Yuan's testimonies that Respondent raised her voice at Downing, told Downing that she was talking to Lee, and did not obey Downing's order to go out as assigned.

When Respondent did not obey Downing's order, Lee testified that Downing said, "if this isn't subordination, I don't know what is." Downing confirmed Lee's testimony. Lee testified that Downing twice issued Respondent the order to take her post and Downing testified that she issued the order three times, including one time at roll call. Respondent did not obey any of the orders.

After Respondent failed to obey Downing's order, Lee testified that he was shocked to see, through the corner of his eye, Respondent unzip her jacket, flip the jacket onto the railing of the gate that separated the public from the Department and the lobby area, stretch her neck, roll her shoulders "in a manner indicative of wanting to fight," while staring at Downing and said, "Let's go." Lee was certain that he heard Respondent say "Let's go." Lee was certain that Respondent did not use the word "go" as in "you want me to go," as Respondent alleged in her testimony. Lee also did not observe

Respondent put up her hands, as Downing and Yuan testified. Downing testified that she felt threatened by Respondent's actions.

On the other hand, Respondent testified that because of Downing's behavior, Lee told Respondent to stand by, so she stepped away from the desk, removed her jacket because as a plus-sized woman, she was hot, and wanted to remain cool and relaxed and also she was "embarrassed, humiliated and belittled." She alleged that her jacket fell on the floor and while standing there, she asked Downing, "Are you letting me go, do you want me to go?"

I credit Lee's testimony, and to a large extent Downing's and Yuan's testimonies, that Respondent challenged and threatened Downing through her actions. Given Gallagher's prior inconsistent statements, I do not give weight to what he did or did not hear, but his testimony is unnecessary given the weight of the testimonies of Lee, Downing and Yuan. I do not find Respondent's version of the incident believable.

After recovering from his shock, Lee ordered Respondent outside the stationhouse and Respondent complied. Respondent told Lee that she was tired of Downing talking to her or screaming at her "like a dog." When Lee asked Respondent why she challenged her supervisor, Respondent alleged that she was hot. After re-entering the stationhouse, Lee intended to send Respondent out on her assignment, but there was no vehicle available for her to use. Downing wanted to suspend Respondent, and after conferring with Lee, Downing notified Bogle.

Based on the foregoing, I find that the Department proved by the credible preponderance of the evidence that on January 10, 2013, at about 7:30 a.m., while on-duty, Respondent wrongfully and without just cause failed to obey the lawful order of her

supervisor, Downing, who directed her to assume her post. Thus, I find Respondent Guilty of Specification No. 1.

I also find that the Department proved by the credible preponderance of the evidence that Respondent engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that, upon being informed by Downing that her assignment was not going to be changed, Respondent wrongfully removed her duty jacket, assumed an aggressive stance and threatened to fight Downing. Thus, I find Respondent Guilty of Specification No. 2.

PENALTY

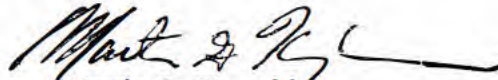
In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on October 15, 1990. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Assistant Department Advocate recommended that Respondent be dismissed from the Department.

There is no doubt that Respondent's conduct was inappropriate and that she appears to lack insight into her inappropriate behavior, but I do not find that Respondent's conduct justifies termination of employment. In making this assessment, I note that there was no physical contact and no attempt at physical contact. Respondent's refusal to obey orders and her intemperate words and conduct do, however, merit a significant penalty.

Consequently it is recommended that Respondent be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion. I further recommend that Respondent forfeit 32 suspension days previously served and that she also forfeit 8 vacation days for a total of 40 penalty days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials



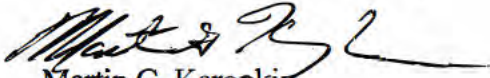
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner -- Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DENISE MCDONALD
TAX REGISTRY NO. 898016
DISCIPLINARY CASE NO. 2013-8822

Respondent in 2012, received an overall rating of 3.0 "Competent" on her annual performance evaluation. She was rated 3.5 "Highly Competent/Competent" in 2010 and 2011. She has been awarded nine medals for Excellent Police Duty. [REDACTED]
[REDACTED]

Respondent has been the subject of two prior formal disciplinary adjudications. In 2001, she forfeited five vacation days after trial for acting in a disruptive manner during the arrest processing of [REDACTED]. In 2004, she forfeited 21 vacation days, 24 pre-trial suspension days, and was placed on one year dismissal probation after trial for failing to comply with multiple orders and interfering in another officer's arrest.

For your consideration.


Martin G. Karopkin
Deputy Commissioner -- Trials